



HOMEOWNER ASSOCIATION INFORMATION REQUEST

(C.A.R. Form HOA-IR, Revised 12/21)

Property Address: _____
Owner of Property: _____ ("Seller")
Owner's Mailing Address: _____
(If known or different from property address)

To: Homeowner Association _____ ("HOA")

I. HOA'S MUST DELIVER THE REQUESTED DOCUMENTS WITHIN 10 DAYS OF SELLER'S REQUEST (CIVIL CODE § 4530(a)).

California Civil Code § 4525 requires sellers to provide buyers of a condominium unit or an interest in a cooperative or planned unit development, at the time of sale, a financial disclosure statement detailing the project's income, expenses, and operating budget for the current fiscal year, as well as a true written statement from an association representative as to unpaid current and special assessments, late charges and fines and penalties or liens on the unit for sale. California Civil Code § 4530 requires the Homeowner Association (HOA) to provide such information to sellers upon written request.

Seller requests: Within **10 calendar days from receipt of this request**, please provide to Seller answers to the questions on Section II and the items and information listed on HOA-RS and HOA-RN at the address indicated above or to _____.

Date: _____ Seller or Seller's Agent: _____

- II. 1. This HOA is self-managed or professionally managed
2. There are _____ units in total. Of those, _____ are owner-occupied and _____ are tenant-occupied. Of the total units, does any owner own more than 1 unit? ☐ Yes ☐ No. If yes, please describe _____
3. Does the HOA have any commercial units? ☐ Yes ☐ No. If yes, please identify _____
4. The current regular assessment for this unit is \$_____ per month or (if checked) ☐ quarter ☐ year
- a. The following regular assessment change to \$_____ has been approved, effective _____
- b. The current balance of the HOA operating account is \$_____, as of _____
- c. The HOA (if checked) maintains a separate reserve account with a balance of \$_____ as of _____
- d. There are no delinquent assessments, penalties, attorney fees or any other charges due with respect to any unit, except for _____
- e. The following special assessment has been approved by the HOA:
- i. Description _____
- ii. Amount payable by subject unit \$_____, due date or payment schedule _____
- f. The HOA anticipates the following special assessments (that have not yet been approved) for maintenance/repairs or to increase reserves: _____
5. There ☐ is, ☐ is not, pending or anticipated litigation or claims affecting the HOA. If so, attach a description.
6. The HOA ☐ has, ☐ has not, maintained financial statements as required by Civil Code § 5300 (See page 2 for § 5300 requirements). Financial records are maintained by _____
7. The HOA charges the following fees and/or holds deposits for transfers of ownership \$_____ ☐ move-ins \$_____ ☐ move-outs \$_____ refundable move deposits \$_____ ☐ Other \$ _____
8. The HOA does does not have separate rules and regulations, in addition to the CCRs.

Signature _____ Position _____ Homeowner Association _____

Print name _____ Date _____ Telephone _____

By signing below, the undersigned Seller(s) are making the above request of the HOA and acknowledge that each has read, understands and has received a copy of this Homeowner Association Information Request.

Date _____ Seller _____

Date _____ Seller _____



California Civil Code § 5300 provides that the HOA financial statements should contain, among other things:

- (1) A pro forma operating budget, showing the estimated revenue and expenses on an accrual basis.
- (2) A summary of the association's reserves, prepared pursuant to § 5565.
- (3) A summary of the reserve funding plan adopted by the board, as specified in paragraph (5) of subdivision (b) of § 5550. The summary shall include notice to members that the full reserve study plan is available upon request, and the association shall provide the full reserve plan to any member upon request.
- (4) A statement as to whether the board has determined to defer or not undertake repairs or replacement of any major component with a remaining life of 30 years or less, including a justification for the deferral or decision not to undertake the repairs or replacement.
- (5) A statement as to whether the board, has determined or anticipates that the levy of one or more special assessments will be required to repair, replace, or restore any major component or to provide adequate reserves therefor. If so, the statement shall also set out the estimated amount, commencement date, and duration of the assessment.
- (6) A statement as to the mechanism or mechanisms by which the board will fund reserves to repair or replace major components, including assessments, borrowing, use of other assets, deferral of selected replacements or repairs, or alternative mechanisms.
- (7) A general statement addressing the procedures used for the calculation and establishment of those reserves to defray the future repair, replacement, or additions to those major components that the association is obligated to maintain. The statement shall include, but need not be limited to, reserve calculations made using the formula described in paragraph (4) of subdivision (b) of § 5570, and may not assume a rate of return on cash reserves in excess of 2 percent above the discount rate published by the Federal Reserve Bank of San Francisco at the time the calculation was made.
- (8) A statement as to whether the association has any outstanding loans with an original term of more than one year, including the payee, interest rate, amount outstanding, annual payment, and when the loan is scheduled to be retired.
- (9) A summary of the association's property, general liability, earthquake, flood, and fidelity insurance policies.
- (10) When the common interest development is a condominium project, a statement describing the status of the common interest development as a Federal Housing Administration (FHA)-approved condominium project pursuant to FHA guidelines, including whether the common interest development is an FHA-approved condominium project.
- (11) When the common interest development is a condominium project, a statement describing the status of the common interest development as a federal Department of Veterans Affairs (VA)-approved condominium project pursuant to VA guidelines, including whether the common interest development is a VA-approved condominium project.

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HOA-IR REVISED 12/21 (PAGE 2 OF 2)



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HOMEOWNER ASSOCIATION INFORMATION REQUEST (HOA-IR PAGE 2 OF 2)

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